

Prem Prakash v. Uttar Pradesh Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 19 November 2022 · WRIT - C No. 30397 of 2022 · **Writ disposed without merits; EE to act as per Supply Code on a disconnection representation filed within one month, after hearing stakeholders.**

HEADNOTE

A consumer who sought a writ for disconnection of two specified electricity connections was told to approach the Executive Engineer under the U.P. Electricity Supply Code, 2005. Without examining the merits, the Division Bench disposed of the petition with a direction that if a representation was moved within one month, the officer shall take action as per law after hearing all stakeholders. Licensee's counsel had stated that action would be taken if the petitioner approached under the relevant Code provisions.

FACTUAL SUMMARY

Prem Prakash petitioned the Allahabad High Court for disconnection of two electricity connections numbered S-125/007530 and S-241/69903. The respondents were Uttar Pradesh Power Corporation Limited and others, including the Executive Engineer, Dakshinanchal Vidyut Vitran Khand, Aligarh. Counsel for the petitioner stated that disconnection of those connections had been requested. Counsel for the electricity department stated that if the petitioner approached under the relevant provisions of the Electricity Code, action would be taken.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

consumer-requested disconnection; representation as per law

HOLDING

Without examining the merits, a writ seeking disconnection of specified electricity connections was disposed of with a direction that if the consumer moved a representation to the Executive Engineer within one month, the officer shall take action as per the U.P. Electricity Supply Code, 2005 after hearing all stakeholders. ¶ 1

FLAG Order cites the U.P. Electricity Supply Code, 2005 generally; no clause number is stated.

PRINCIPLE TAGS

representation-as-per-law A consumer seeking disconnection of supply may be directed to move the Executive Engineer under the U.P. Electricity Supply Code, 2005; the writ is disposed without merits, with a one-month representation window and a direction to act as per law after hearing stakeholders. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON THE MERITS TO DISCONNECTION OF CONNECTIONS S-125/007530 AND S-241/69903

The Court expressly declined to go into the merits. ¶ 1